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From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Complaint.

Mr. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on 31/03/2022. The complaint is directed against Mr. B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons on which the complaint is based are as follows:

The respondent has published on YouTube (link provided ***URL.1) a video corresponding to the recording of a prior videoconference held on XX/07/2021 (which was later archived due to the withdrawal of the claimants) to which he had access as a party involved as the respondent in the process (Court of First Instance XX of Valencia - ordinary procedure N XXXX/2020). In the video, the personal data of the participants (name, surname, position, image, and voice) appear, including that of

the complainant.

On the other hand, the publication of a document submitted by the respondent to the Court in said procedure is also reported, a "note of evidence" "that includes data," indicating that it is hosted at the link:

***URL.1 and ***URL.2

It provides:

1- In document 1, a certificate from the entity EGARANTE, of the "content found on the internet," access URL ***URL.3, 14/10/2021, screenshot of the video, 24 minutes, 13 seconds.

2- In document 2, a certificate from EGARANTE of the content found on the internet, visit date 14/10/2021. It references the URL ***URL.4.

This is a document addressed by the respondent to the Court of First Instance XX of Valencia, ordinary procedure XXXX/2020, note of evidence for the preliminary hearing - instructive note of XX/XX/2021, with the personal data and information of the document that appears in the section of "claimants," among which are the complainant and three other individuals with their names and surnames. At the end of the document, it indicates that this note of evidence and the documentation it provides or references "is the responsibility of the respondent B.B.B. and is published at ***URL.4.

3- In document 3, a certificate from EGARANTE of the content found on the internet, visit date 14/10/2021. It references the access URL:

***URL.5

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The content is the same as that mentioned in the previous point.

4- The complete video in CD format.

The images of the trial can be viewed. From the beginning, in most of the image, the representative of the respondent is prominently displayed in the center, attending telematically, not being in the judicial office, with his name and surname appearing. In another smaller frame, the representative of XXXXXXXXX (acronym for Association for (...)) advanced, of which the respondent is XXXXXXXXX), who also attends in the same manner and is also seen in close-up on the screen when speaking. At the bottom, the details of the procedure are shown, although the source is not indicated, while in the lower right part, a smaller image at a certain distance shows the arrangement of the table presided over by the Judge, to her left a man, who turns out to be the complainant. Additionally, to the right of the judge is a secretary, and to the right of her, the Prosecutor. From this last group, no label with the data of any of them appears, and all are wearing masks. On the screen, XX/XX/2021 is displayed in the upper right corner and in the lower left "J. 1ª INST n XX of Valencia, XXXX/2020 - ordinary procedure Preliminary hearing."

As for the image in the lower right corner, it does not change throughout the time. They are seen without excessive detail, at a certain distance, in a smaller size than the images of the representative of the respondent and of XXXXXXXXX, although they can be distinguished when they speak.

The video begins with words from the Judge, identifying the procedural act, ordinary trial 1221/2020, preliminary hearing. She asks if the parties have reached a transaction or agreement regarding the object of the litigation, and the complainant takes the floor, referring to his clients - LEGAL ERASER - and defended individuals, and explains his request in the process of unlawful intrusion into honor. On the defendant's side, the lawyer of the respondent and another from the Association XXXXXXXXX attend telematically and confirm their response to the complaint.

The judge examines the procedural exceptions and the response to the complaint from the complainant. She considers that the complaint does not specify the links and their content and does not allow for a specific right to defense. Due to the lack of specification of the alleged facts and their exact and certified location on each webpage or links, she considers that it affects the right to defense. She indicates that, given that the content of the pages is changing, it is at the time of filing the

complaint that the content of each page must be credibly proven in relation to the accusation, and it is not her job to delve into those webpages to see what they contain. She considers the complaint not amendable, and asking the complainant what he wishes to do regarding the options, he decides to withdraw the complaint, which leads to its filing, as opposed to the other option of issuing a dismissible order, which is an absolutely procedural matter.

SECOND: Fact verification action.

As a fact verification action, by the General Subdirectorate of Data Inspection:

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a) Dated 3/05/2022, there is a possibility to access: ***URL.1 with 6 pages, with a signed diligence: “published document” in the associated object of the AEPD management application. This is the document that the representative of the respondent addresses to the Court for the preliminary hearing of procedure XXXX/2020. In it, the claimant is also identified as the plaintiff's lawyer. The respondent refers to the censorship implied by the activities carried out by LEGAL ERASER, TE BORRAMOS, or HONORALIA, as companies through which the claimant seeks to impose censorship, and which must accept criticism.

b) Dated 10/05/2022, the profile “B.B.B.” appears on YOU TUBE, “50 subscribers,” with their photo, and several uploaded videos, including one with a duration of 24:13 with “975 views 9 months ago.” On the video screen, it is printed at that moment, 15/07/2021 and the time, 12:22:22 with the image of a man with a beard, glasses, and headphones, also showing in the image the procedure J 1ª INST n 19 of Valencia- and the XXXX/2020-Ordinary Procedure-Hearing p... All of this is at the address:

***URL.6 where their profile, photo, and the number of subscribers and uploaded videos can generally be seen. A diligence is carried out in the associated object with the name: “You Tube Channel.”

c) Dated 10/05/2022, under the profile “B.B.B.” on YOU TUBE, the video: “preliminary hearing Court of First Instance n XX of Valencia. Ordinary Procedure XXXX/2020,” 975 views, 6 likes, and below the document of the (...) in link and screenshot, showing the name and surname as the plaintiff alongside LEGAL ERASER SL. At the bottom, it informs that an order was issued on 27/07/2021 “before the exception of the defect in the manner of proposing the claim, the acting party warned by SS with the imposition of costs caused to the company LEGAL ERASER,” leading to the link ***LINK.1. A diligence is carried out, appearing in the procedure, in the associated object with the name: “available video.”

THIRD: Transfer of the complaint to the respondent.

In accordance with Article 65.4 of Organic Law 3/2018, of 5/12, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGD), the complaint was transferred to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of 1/10, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on 20/05/2022, as noted in the acknowledgment of receipt in the file.

On 13/06/2022, a response letter was received by this Agency, indicating:

1) It expresses its opposition to the admission, as it contains no more personal data than the name of the claiming lawyer - “a recognized professional of highly publicized paid censorship.” It indicates that it requests that from the viewing of the complete video, it be pointed out what the unpublished data is. It expresses and interprets what it considers the Judge expresses in the video regarding the business interests of the brands TEBORRAMOS and LEGAL ERASER for which the claimant works. The claimant, representative of these entities, lacks standing to claim the data of their name when the respondent writes, says, or publishes against their company, while the respondent is defending themselves against their demands and claims.

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The claimant has their name published in advertising-type videos on YOU TUBE, promoting the business. They consider that the honor of a natural person cannot serve as a shield for a brand.

2) The claimant instrumentalizes their censoring business LEGAL ERASER to prevent truthful information from being provided about such relevant facts, even with high doctrinal legal interest, as what Your Honor verbally expresses in the video that the claimant's lawyer intends to censor, without even having taken the trouble to first complain to YOU TUBE or GOOGLE.

3) The respondent believes they are protected by Article 20 of the Spanish Constitution against the censoring claim of the claimant, a lawyer in their own name, "considering what Your Honor has stated in public hearing."

4) In the event that the claim is admitted for processing, they request that the procedure be suspended "until GOOGLE or YOU TUBE resolves the claims of the claimant and all other representatives, represented parties, or clients of LEGAL ERASER, TE BORRAMOS HONORALIA," "and in any case, that a detailed report be requested from GOOGLE and YOU TUBE regarding what has already been censored at the request of the claimant or other representatives of their company."

FOURTH: Admission of the claim for processing.

On 06/17/2022, in accordance with Article 65 of the LOPDGDD, the claim submitted by the claimant was admitted for processing.

FIFTH: Written submission from the respondent.

On 07/29/2022, the respondent submitted a written document regarding matter EXPXXXXXX46, although it contains allegations related to the procedure PS/00485/2021 that was followed against the respondent for other facts and which have already been entered into the same.

SIXTH: Written submission from the respondent.

On 10/03/2022, the respondent submitted a written document regarding matter EXPXXXXXX46, reiterating that they appeal the admission for processing. They request that it be incorporated into the file "initiated by the same claimant who intends to censor, and who has already managed to have GOOGLE censor, a very relevant judicial resolution from Judge C.C.C., which has been repeatedly cited but completely ignored by the Director of the AEPD in the resolution being appealed here, and whose grounds are directly applicable for the direct inadmissibility, or for the firm dismissal, of all the claims for prior and general censorship of all the activities of the claimants and the company LEGAL ERASER with its brands."

They request that considering the "in voce resolution in public hearing of the Court that the claimant also intends to censor, it be specified what exactly cannot be published about the lawyers of TE BORRAMOS or the public official convicted in STS XXXX/2008."

They request a copy of the file.

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SEVENTH: Written submission from the respondent.

Dated 30/10/2022, the respondent submits a written document, which references EXPXXXXXX46 "in process and pending appeal," and PS/00485/2021.

It mentions its request for information regarding actions initiated by the AEPD without prior complaint to the publisher. It provides a copy of the response from the Information and Transparency Unit of the AEPD dated 26/10/2022, which states regarding the request:

"B.B.B., on behalf of the Association XXXXXXXXX, (hereinafter, the applicant) submitted a request for access to public information to the Spanish Agency for Data Protection (hereinafter, AEPD) on August 30, 2022, the object of which is transcribed: "[...] 1st Copy of all documents, including especially the complaints (anonymizing only personal data but not the professional data of the complainants, and even less so of their professional representatives), or at least, relevant data and metadata and all publishable resolutions of the AEPD related to the representatives of the company Legal Eraser SL or

its brands TeBorramos or Honoralia or its clients, [...] 2nd From the above, that it be broken down specifying all the public or publishable resolutions that have benefited the clients of Legal Eraser SL, whether they mention their brands TeBorramos or Honoralia, or whether the representatives of Legal Eraser SL act [...] 3rd From all the above, that it be specified how many of those actions by the AEPD have been initiated without prior complaint to the publisher of any information that displeases the company Legal Eraser SL or its brands or its representatives or that its clients intend to censor.”

In Legal Grounds, it states:

“12. Regarding the third category of information requested, namely, how many of those actions by the AEPD have been initiated without prior complaint to the publisher, it must be understood that the applicant refers to the request for the exercise of rights recognized in Articles 15 to 22 of Regulation (EU) 2016/679, of April 27, 2016, General Data Protection Regulation (GDPR). That is to say, it requests to know the cases in which the right has not been exercised before the respondent, prior to submitting the complaint to the Agency. In this regard, it should be noted that the processing of these procedures will follow the provisions of Articles 63 and following of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD). It being an essential requirement that the interested party has exercised the requested right before the responsible party.”

It requests that, given that it is essential for the interested party to have exercised the right before the responsible party, the files be declared null.

EIGHTH: Background of the respondent.

For the relevant purposes, in the SIGRID registry, information management system of the AEPD, the respondent has the sanctioning procedure PS/00485/2021, with the imposition of an administrative fine of 5,000 euros in the resolution of 25/08/2022, for an infringement of Article 5.1.c) of the GDPR, classified at C/ Jorge Juan, 6

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Article 83.5 a) of the GDPR, and for the purposes of prescription in accordance with Article 72.1.a) of the LOPDGDD, noting as additional information that a motion for reconsideration was filed, which was dismissed on 31/10/2022, and that against the resolution, the intention to file a contentious appeal was announced, requesting the suspension of the execution of the sanction, proceeding by agreement of the Director of the AEPD, dated 21/12/2022, to the aforementioned suspension.

NINTH: Agreement to initiate.

On 17/04/2023, the Director of the AEPD agreed:

“TO INITIATE SANCTIONING PROCEDURE against Mr. B.B.B., with NIF ***NIF.1, for the alleged infringement of Article 5.1 b) of the GDPR, in accordance with Article 83.5.a) of the GDPR, and classified as very serious for the purposes of prescription in Article 72.1.a) of the LOPDGDD.”

“for the purposes provided in Article 64.2 b) of the LPACAP, the sanction that may correspond would be an administrative fine of 10,000 euros, without prejudice to what results from the instruction.”

TENTH: Allegations to the initiation agreement.

On 03/05/2023, the respondent made the following allegations:

- 1) The links stated in the initiation agreement of the video are incorrect, both in the “first fact” on page 1 and on page 2. The same occurs with the docs.google link at the end of the first page. Therefore, he requests the annulment of the AEPD resolution for containing erroneous links.
- 2) He requests the abstention and, subsidiarily, the recusal of the instructor whom he considers responsible for “numerous arbitrariness,” always in favor of the lawyer D.D.D. and for:
 - a) Having a personal interest in the matter in question or in another whose resolution could influence that of the former; being an administrator of a company or entity interested, or having a pending litigation with any interested party...
 - c) Having close friendship or manifest enmity with any of the persons mentioned in the previous section...
 - e) Having a service relationship with a natural or legal person directly interested in the matter, or

having provided professional services of any kind and in any circumstance or place to the view of what is stated, expressly pointing out as arbitrariness in the AEPD file in CA_00030_2023_1.pdf that was instructed by the same.”

3) “It is intended to censor truthful information about facts of public relevance protected under Article 20 of the Spanish Constitution of the complainant in his own name and when acting on behalf of LEGAL ERASER SL and the trademarks “TE BORRAMOS” and “HONORALIA.”

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“The professional actions of the complainant are also relevant and of public interest, especially his in revealing the illicit secret of the complainant, his businesses, and his clients.”

He adds that listening to what the Judge says in the video, “of which the link is not provided,” that “they have allegedly listened to a recording provided by the complainant's lawyer” “which I do not have,” is of public interest and significance.

Furthermore, he believes that “it not only affects the right to give and receive truthful information by any means but also the right to defense.”

He states that he has reported to the CGPJ censorship for “alleged concealment of judicial resolutions,” adding the URL where it is located, as well as in a URL of his domain ***DOMINIO.1.

4) The Director of the AEPD cannot limit herself to censoring by sanctioning what she does not like being published about a censoring business, but must also protect the relevant data that are being censored, “even in the jurisprudence of the judicial power in favor of the complainant and his censoring business.”

5) He refers to the Judgment of the National Court 1702/2012, regarding the publication on a website intended to provide news and information related to the judicial sphere and activities of expertise concerning the activity carried out by several professors of the Polytechnic University of Madrid who act as expert witnesses in judicial proceedings, despite being in a regime of exclusive dedication, which upheld the claim indicating that the instructor ignores this jurisprudence and that it is applicable to this complaint, making it inadmissible. He clicks on the link to the judgment and it turns out to be ECLI: ES:AN:2012:1702, from the contentious-administrative chamber, section 1, dated 11/04/2012, appeal 410/2010, and the starting situation was that it was about making known through the exhibition of videos on their channel about a possible illegal activity as judicial experts of professors from the University with exclusive dedication, having obtained the images they displayed from the internet and that did not have the authorization of the affected persons. Among the images were videos from public hearings of trials in which they acted as experts in judicial venues.

6) He requested a copy of the file that was sent to him and states that he will publish everything, including the initiation agreement of which he sends the link, as something already done, and that, by clicking, leads to the initiation agreement, showing the CSV and the reference of the agreement.

7) In his allegations, the respondent specifies that “I myself have published on ***URL.6” due to its relevance and significance” regarding the initiation agreement of the present procedure containing the full identification of the complainant, through the name and surnames, as well as the procedure in which the video would be viewed if it had not been removed, because it contains the URL.

ELEVENTH: Resolution of the recusal incident.

On 19/05/2023, it was resolved that the grounds for recusal alleged do not exist and the continuation of the proceedings of the file by the designated instructor.

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TWELFTH: Commencement of the evidence practice period.

On 16/10/2023, a period of evidence practice commenced, considering reproduced for such purposes the claim filed and its documentation, the documents obtained and generated during the admission phase of the claim, and the preliminary investigation report that is part of the procedure AT/02319/2022.

Furthermore, the allegations to the initiation agreement of the referenced sanctioning procedure presented by the respondent, along with the accompanying documentation, were also considered reproduced for evidentiary purposes.

Additionally, the following evidence was decided to be practiced:

1. Collaboration is requested from the Lawyer of the Administration of Justice of the Court of First Instance 19 of Valencia, to report:

a) Whether in the ordinary procedure XXXX-2020, the recording of the preliminary hearing held on XXXX/2021 was delivered to the defendant, D. B.B.B., on what date, and if any usage conditions, limits, or warnings regarding the use of such acts were indicated in the delivery.

He responded on 07/11/2023, that the “defendant” through his attorney, on 16/07/2021, requested a copy of the preliminary hearing held, ordinary procedure XXXX/20, and that the copy of the recording was sent to him on 20/07, through an order diligence of that date which refers to obtaining the copy of the recording via direct access through the ARCONTE-AUREA portal. He provides a copy of the express request for the copy of the preliminary hearing held, with the issuance of the recording requested by the representation of the claimant, and a copy of the order diligence of 20/07.

b) Report on the legal regime that enables the possibility of recording procedural acts and their delivery to the parties, and whether such delivery always occurs ex officio or at the request of a party. He responded that it is Articles 146, 147, and 187 of the LEC. “The obtaining of recordings by the parties in practice occurs automatically through the aforementioned portal, where once the trials, hearings, or preliminary hearings are validated with the signature of the Lawyer of the Administration of Justice, they are available to professionals for obtaining copies.”

c) Report whether these procedural acts, in this case, the preliminary hearing, would be susceptible to publication in the jurisprudence repertoire of the CENDOJ or if he knows the criteria that could make it publishable.

He responded that “he does not know whether these procedural acts, the preliminary hearing, would be susceptible to publication in the CENDOJ jurisprudence repertoire nor the criteria that could make it publishable.”

d) Regarding the order issued in the matter, the ***ORDER.1/2021 of XXXX/2021 of the Court of First Instance XX of Valencia, ordinary procedure XXXX/2020, report the date on which it was delivered or accessed the notification by the party representing D. B.B.B.

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He responded that, upon examining the records, it is noted that he was notified through his legal representation via the LEXNET system on 07/29/2021. He provides a copy.

2. On the same date, 10/16/2023, access was made to YOU TUBE, in order to check if the profile of B.B.B. continues to host the video of J 1ª INST n XX of Valencia, XXXX/2020, ordinary procedure - Hearing p...” which was seen in the image along with others on the general page of his profile ***URL.7, or the same specific video, at ***URL.3, as indicated in the initiation agreement.

From YOU TUBE, on 10/16/2023, the following was entered:

***URL.8, which leads to the general profile of B.B.B., showing his photo and full name, an email address, with 89 subscribers (listed as object 4 in the file). Clicking there leads to the “HOME” tab screen, in the “uploads” section, the video (object 5 in the file) appears. This video has a duration of 24 minutes 13 seconds, titled “preliminary hearing Court of First Instance n”, now it states: “two years ago” and 4.8 K views.

When viewing the video by clicking on it, the address appears: ***URL.3, with the literal title “preliminary hearing Court of First Instance number XX of Valencia ordinary procedure XXXX/2020”.

The lawyer for the defendant is prominently displayed, with the date XXXX/2021 and the time, 12:14:16" visible at the top (objects 6, 7, and 8). The video matches the one provided by the claimant. Additionally, below the title, the text of the document that the defendant, here claimed, submitted for the preliminary hearing is displayed, with the claimant's details: name and surname and those of the claimants, three other individuals.

At the end of the document, it refers to the order ***ORDER.1/2021 of XXXX/2021, which is reproduced at the domain URL ***DOMAIN.2.

Furthermore, it is verified that from YOU TUBE, directly entering the address ***URL.3, the cited video can also be obtained.

Additionally, the cited video that appears in the procedure is downloaded in mp4 file format.

THIRTEENTH: Issuance and sending of resolution proposal.

On 11/29/2023, a resolution proposal was issued, with the following text:

"FIRST: That the Director of the Spanish Agency for Data Protection sanctions Mr. B.B.B., with NIF ***NIF.1, for an infringement of article 5.1.b) of the GDPR, in accordance with article 83.5 a) of the GDPR, and for prescription purposes, classified as very serious under article 72.1 a) of the LOPDGDD, with a fine of 10,000 euros.

SECOND: That the Director of the Spanish Agency for Data Protection orders Mr. B.B.B., with NIF ***NIF.1, that pursuant to article 58.2.d) of the GDPR, within ten days, he must prove that he has implemented a technical solution that does not allow the identification of his voice and image from the video with the images of the claimant, and does not allow him to be identified in the documents at the bottom of the video associated with it nor access the links containing the instructive note."

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FOURTEENTH: Allegations to the proposal.

On 12/23/2023, the respondent makes the following allegations:

- 1) States that the proposal it has received has been published at the address ***URL.8.
- 2) States that the received sanction proposal does not contain any protectable personal data, only minimal information about the claimant, a practicing lawyer, which is publicized in various media. "The claimant wants to prevent the respondent from censoring to cover up facts and hide data as relevant and publishable as those of the procedural act, referring to several facts and data that are not personal at all, but purely business-related and acts of a professional lawyer, who is also the administrator of the company LEGAL ERASER SL."
- 3) The file does not contain any prior complaint or "anything similar," which is mandatory and essential to initiate a sanctioning procedure. "The claimant has not approached me claiming by their own right." It adds that this is not the first time that "an illegal complaint has been processed without the mandatory prior reliable communication to the respondent, as stated in the allegations in PS/00485/2021." "If a complaint is made to the AEPD, it must always, without exception, provide proof of the prior complaint to the respondent."

The claimant also knows the prior requirement of a direct and reliable complaint to the respondent, also known as requesting from Google and in this case, from YouTube, and may have succeeded in having the content removed.

- 4) The instructor and the Deputy Director of Inspection of the AEPD have completely ignored the abundant references and relevant data that have been provided, especially the rulings of the National Court that annul sanctions that have sought to censor information published on the internet protected by Article 20 of the Constitution, again citing SAN 1702/2012. However, the "numerous rulings that the instructor cuts and pastes without sense have nothing to do with the facts and rights in question."

- 5) The publications that are intended to be censored, the YouTube video, are expressly protected by Law 2/2023, of 02/20, regulating the protection of persons who report regulatory violations and the fight against corruption, and Article 38, which establishes protective measures against reprisals, "which the instructor completely ignores despite the very serious regulatory violations and facts clearly

related to acts of corruption.”

6) “Due to the existence of documents in the file that have not been transferred, I request an updated complete copy of the same, containing these allegations.”

7) Allegations that relate to the claimant's business model or that it is a censoring business, the type of advertising it uses, or that it should be scrutinized, and for which it requests recognition of public relevance.

As well as that the AEPD specifies and documents how many administrative resolutions have been used to require GOOGLE and YOU TUBE to remove content, considering that the claimant boasts of having eliminated hundreds of thousands of links.

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8) Based on the above, the claimant requests the file of the claim, although he adds that:

- Given the disproportionality of the sanction, considering his modest personal and economic situation (already documented) and that he does not obtain any benefit other than exercising the rights of the Constitution, the amount of the fine should be reduced to the minimum.

PROVEN FACTS

FIRST: Mr. A.A.A., the claimant, filed a claim on 31/03/2022 against Mr. B.B.B., the respondent, because the telematic videoconference of a preliminary hearing of an ordinary civil trial for intrusion into honor (procedural act held on XXXX/2021 at the Court of First Instance XX of Valencia, ordinary procedure XXXX/2020) is exposed on YOU TUBE, at the url ***URL.3, providing a certificate from the company eGarante dated 14/10/2021. Below the video is the document that the respondent addressed to the Court containing the names and surnames of the claimants and at the end, the mention of the order that was issued after this hearing, dated XXXX/2021.

The claimant provided a copy of the video in which the remote procedural session is seen, with the respondent's representative alongside the claimant, judge, secretary, and prosecutor at the judicial venue where the act is held. The video contains the identification of the procedure, the date and time, and a duration of 24 minutes and thirteen seconds, and it also includes the intervention of the parties, including the voice of the claimant and his explanations.

The judge, after commenting on the exceptions in response to the respondent's claim, discusses the defects that the claim suffers from, and the claimant (here referred to as the claimant) decides to withdraw.

SECOND: The claimant also points out that at the address ***URL.4, the same content of the document that appears below the video on YOU TUBE, which the claimant addressed to the Court for the preliminary hearing of procedure XXXX/2020, containing the names and surnames of the claimant and the claimants, is found. On 3/05/2022, it was confirmed that the document existed on that website.

THIRD: On 10/05/2022, after the filing of the claim, it was possible to access the address: ***URL.6 to B.B.B.'s profile on YOU TUBE, where among the uploaded videos, one coincides with the one provided by the claimant as verification carried out by the General Sub-Directorate of Data Inspection, in which the document of the (...) is also seen in link and screenshot, showing the name and surname of the claimant as the plaintiff along with the names of the individual claimants he represents. At the bottom, it informs that an order ***ORDER.1/2021 was issued on XXXX/2021, and another link is provided to access its content.

FOURTH: According to the information provided in evidence by the Lawyer of the Administration of Justice of the Court that processed the matter, the respondent (referred to here as the respondent) obtained a copy of the videoconference of the preliminary hearing held on XXXX/2021, ordinary procedure XXXX/2020, upon request from his Attorney through access to the Arconte-Aurea portal, certified in the diligence of 20/07/2021, based on the provisions of the Civil Procedure Law, arts. 146, 147, and 187. It was also stated that the order

***AUTO.1/2021 of the same matter, issued on XXXX/2021, was notified to the defendant (claimed here) on 29/07/2021.

FIFTH On 16/10/2023, during the evidence gathering process, the video subject to the claim remained on the YOU TUBE channel, as well as the instructive note, and the reference to the order

***AUTO.1/2021.

SIXTH: The defendant was sanctioned in a previous procedure PS/00485/2021 for violating Article 5.1.c) of the GDPR.

SEVENTH: In the written allegations to the initiation agreement, the address ***URL.9 contains the initiation agreement by the defendant, which states, due to its relevance and significance, containing the full identification of the claimant, through their name and surname, as well as the procedure in which the video would be viewed if it had not been removed, because it contains the URL.

LEGAL GROUNDS

I Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of 5/12, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II Definitions and application of the GDPR-LOPDGDD

Article 4 of the GDPR, "Definitions," subsection 1, defines "personal data" as "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;" Likewise, Article 4 of the GDPR provides in subsection 2 a legal concept of "processing," as: "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure, or destruction."

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Recital 1 of the GDPR states:

"The protection of natural persons in relation to the processing of personal data is a fundamental right. Article 8(1) of the Charter of Fundamental Rights of the European Union (the "Charter") and Article 16(1) [TFEU] establish that everyone has the right to the protection of personal data concerning them." Individuals have control over their personal data, including their image and voice, as well as over its dissemination, and undoubtedly, the person whose personal data is disseminated in violation of the legal order deserves protection. Furthermore, if there is a legitimate basis for such processing, the remaining principles derived from the GDPR must be complied with, and the exercise of rights over the same must be guaranteed.

Report 139/2017 from the Legal Office of this Agency states that "the image, as well as the voice of a person, is personal data, just as any information that allows for the determination, directly or indirectly, of their identity will be."

The voice, moreover, is a personal attribute unique and individual to each natural person, defined by its pitch, intensity, and timbre. Endowed with unique and singular distinguishing features that directly

individualize it, associating it with a specific individual, it is shaped when speaking, allowing one to discern, through it, the age, sex, health status of the individual, their personality, culture, origin, hormonal, emotional, and psychological state. Elements of expression, idiolect, or intonation are also considered personal data when regarded together with the voice.

In fact, the Judgment of the National Court dated 19/03/2014 (rec. 176/2012) states that "the voice of a person constitutes personal data, as deduced from the definition provided in Article 3(a) of the LOPD, as 'any information concerning identified or identifiable natural persons,' a matter that is not controversial."

In this case, the video consists of the celebration of a civil procedural act of a preliminary hearing, concerning the civil protection of fundamental rights (honor and privacy of individuals) held via videoconference on XXXX/2021, presided over by the Judge, in which the respondent was the defendant, and was fully exposed on the YOU TUBE channel by the respondent. The claimant represented natural persons and a legal entity, LEGAL ERASER. But not only the voice, but also in this case, the publication of documents such as the one the respondent directed to the Court for it to take effect in such proceedings, exposed alongside the video on YOU TUBE and on a differentiated channel also under the respondent's address, of the domain ***DOMINIO.1, containing the names and surnames, in this case of the claimant as well as other individuals, constitutes processing of personal data.

Additionally, the exposure of the initiation agreement or the proposal for resolution that the respondent acknowledges is made, whether on their domain: ***DOMINIO.1 or on ***DOMINIO.2, under the justification of the supposed transparency of the matter,

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"It should be noted that publishing, on a video-sharing website where users can upload, view, and share videos, a video recording, such as the controversial video, which contains personal data, constitutes a total or partially automated processing of that data, in the sense of Articles 2(b) and 3(1) of Directive 95/46."

(Judgment of the Court of Justice of the European Union, Second Chamber, dated 14/02/2019, C-345/2017, case Buivids)

Furthermore, the circumstance that information is recorded in the context of a professional activity, that of the claimant, cannot deprive it of its qualification as "personal data" (see, in this regard, the judgment of the CJEU dated 16/07/2015, ClientEarth, and PAN Europe/EFSA, C-615/13 P, EU:C:2015:489, paragraph 30), since any citizen holds the ownership of the right, regardless of whether they engage in a professional activity.

From the early application of data protection matters, the Judgment of the National Court dated 21/11/2002, rec 881/2000, already considered that, indeed, personal data is applicable to all citizens, without excluding those relating to individuals who carry out a professional activity, as the exercise of this activity cannot be equated for these purposes to that of a company.

Insofar as the defendant published the complete video of the procedural act without access restrictions on a video-sharing platform where users can upload, view, and share videos, thereby making personal data accessible to an indeterminate number of people, data processing is being carried out, personal data processing that does not fall within the framework of activities that are exclusively personal or domestic, making the GDPR and the LOPDGDGDD fully applicable.

The video is accompanied by the document that the defendant presented at the aforementioned act, as an instructive note containing the claimant's data - name and surname, as well as those of their represented individuals. Furthermore, the same content of that instructive note appears on the defendant's website.

III Type of processing - Purpose.

In the present case, the origin of the delivery of the videoconference containing personal data by the Judicial Office to the defendant would also be a processing of personal data, which is contemplated in Organic Law 6/1985 of 1/07 on the Judiciary and complementary laws, such as Law 18/2011 of 5/07, regulating the use of information and communication technologies in the administration of Justice, always under the purpose of effective judicial protection contained in those and other procedural norms within the "jurisdictional files." This term was introduced by the amendment of the LOPJ by Law 7/2015, which states in its explanatory memorandum:

"the responsible party for the jurisdictional files is the judicial body, and these are governed by procedural laws regarding the ARCO rights – access, rectification, cancellation, and opposition. The control authority for such files will be the General Council of the Judiciary. On the other hand, the responsible party for non-jurisdictional files is the Judicial Office, headed by a Justice Administration Lawyer. This type of file will be governed by existing regulations on the protection of personal data, and the control authority for these files will be the Spanish Agency for Data Protection."

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Furthermore, this Law drafted the new articles 236 bis to 236 decies of the LOPJ, related to the processing of data in the context of the exercise of jurisdiction, and for this purpose, it is worth highlighting the following:

- Article 236 bis:

"1. The processing of personal data may be carried out for jurisdictional or non-jurisdictional purposes. The processing of data incorporated into processes aimed at exercising jurisdictional activity will have jurisdictional purposes."

- Article 236 octies:

"2. Data processing for non-jurisdictional purposes will be subject to the authority of the Spanish Data Protection Agency, which will also supervise compliance with those processes that do not fall under the jurisdiction of the authorities indicated in the previous section."

Article 187.1 of the LEC establishes that the development of the hearing will be recorded on a medium suitable for the recording and reproduction of sound and image or, if that is not possible, only sound, in accordance with the provisions of Article 147 of this law, "and that the parties may, in any case, request at their own expense a copy of the media on which the hearing has been recorded."

Article 147 of the Civil Procedure Law (LEC) establishes that "Oral proceedings in hearings, audiences, and appearances held before judges or magistrates or, where applicable, before the lawyers of the Administration of Justice, will be recorded on a medium suitable for the recording and reproduction of sound and image and may not be transcribed."

The Lawyer of the Administration of Justice will be fulfilling the legal obligation imposed upon them upon the request of the party, and such data processing is not considered incompatible with the initial purpose for which the data was collected and is processed. Therefore, the data processing consisting of the transfer of the medium to the party that requested it would be in accordance with personal data protection regulations, initially occurring for jurisdictional purposes.

Given that, as can be understood from what is known so far, the process in which the hearing took place has already concluded, understanding that the transfer of personal data contained in the videoconference conducted by the Judicial Office was based on effective judicial protection for legal professionals, and for its own purposes, the subsequent posting of the video on the YOUTUBE channel would not have the character of personal data processing carried out with a "jurisdictional purpose."

A different issue will be the use that the party to whom the videoconference is delivered may subsequently make of the personal data contained in the recording depending on the purpose they intend, if the personal data is necessary for that purpose, weighing the specific case against the

principles of adequacy, relevance, and congruence.

In this regard, it should be noted that any subsequent processing of such personal data will also be subject to full compliance by the data controller, the party being claimed, with the regulations on personal data processing, which means that they may only be used in accordance with what the regulations establish, being subject, otherwise, as the data controller, to the potential liabilities arising from violations of such regulations.

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Article 5 of the GDPR establishes among the principles of data protection that personal data shall be processed lawfully, fairly, and transparently in relation to the data subject ("lawfulness, fairness, and transparency," Article 5.1.a of the GDPR); and collected for specified, explicit, and legitimate purposes and shall not be further processed in a manner that is incompatible with those purposes ("purpose limitation," Article 5.1.b of the GDPR), under a legitimizing premise contained in Article 6.1 of the GDPR.

The respondent states that the exposure of the videoconference copy on the YOU TUBE channel is to make known the doctrine of the matter, considering the claim brought by the claimant (here the complainant) to be improperly raised, and believes it is entitled to its exposure, in exercise of its rights enshrined in the Spanish Constitution, Articles 20 and 120.

Article 8 of the Charter of Fundamental Rights of the European Union, under the heading "Protection of personal data," provides: "1. Everyone has the right to the protection of personal data concerning them. 2. Such data shall be processed fairly, for specified purposes, and based on the consent of the data subject or on another legitimate basis laid down by law. Everyone has the right to access data concerning them and to have it rectified. 3. Compliance with these rules shall be subject to control by an independent authority."

Article 120 of the Spanish Constitution (CE) states:

"1. Judicial proceedings shall be public, with the exceptions provided for by procedural laws.

[...]

3. Judgments shall always be reasoned and shall be pronounced in a public hearing."

The Third Chamber of the Supreme Court, of administrative contentious matters, section 1, in a judgment of 03/03/1995, appeal 1218/1991, indicates:

"From the examination of the aforementioned LOPJ, reflecting the principle of Article 120 CE, as well as the procedural laws, it follows that the right and corresponding duty to know and access the text of judicial resolutions is graduated according to three different areas or spheres of impact, each governed by different criteria, namely:

a) one of maximum breadth or generalized impact, which includes the public or citizens in general, without specific qualification and corresponds to the publicity of judicial proceedings carried out in all kinds of processes, allowing them to attend to the practice of proceedings that must take place 'in public hearing,' except for the declaration of confidentiality that the jurisdictional body may reasonably agree upon, a principle of publicity constitutionalized, as stated, in Article 120.1 CE and reflected in Article 232.1 LOPJ; this principle of publicity, which, although rooted in the fact that justice emanates from the people (Article 117.1 CE), cannot be turned away from its administration by judges, thus eliminating secrecy and opacity in the dispensation of justice, is not the one that can be invoked to protect the right of access to the text of judgments once they have been issued and deposited in the Secretariats of Courts and Tribunals, in the manner sought by the appealing entity, because here it is already a closed or concluded process through the most solemn and decisive..."

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of judicial resolutions, and that regarding third parties, it corresponds not with the principle of publicity in the practice and development of judicial proceedings, which through it produces a control or guarantee of these, but rather with the right to information of judicial texts already produced and with which a process is closed at least in its declarative phase, leaving aside the execution, for which the legislator has reserved and designed another area of impact distinct and to which it calls specific and determined subjects, not to citizens or the public in general;

b) At the opposite extreme, of maximum restriction of the scope of knowledge of judicial decisions, are the acts of notification and communication of these, directed only to those who hold the status of procedural party by virtue of procedural laws, and which regarding the judgments determine the right and corresponding duty of Judges and Courts to their knowledge through the instrumental act of notification, as prescribed by art. 270 LOPJ, which extends it "to those referred to or who may suffer harm" when expressly provided for by the judicial resolution itself, which is not, evidently, the case under examination, since Grupo I., S.A., does not invoke its status as a procedural party to access the text of the judgments, and, finally,

c) Occupying an intermediate position, which places the issue in a more imprecise area, which explains the interpretative evolution of the Council, are the procedural acts that have already been concluded, including the judgments, integrated into books, files, or judicial records, and regarding which, on one hand, art. 235 LOPJ determines that: "Interested parties shall have access to the books, files, and judicial records that are not reserved, through the forms of exhibition, testimony, or certification established by Law," indicating art. 266.1, in relation to judgments, that "Judgments, once extended and signed by the Judge or by all the Magistrates who have issued them, shall be deposited in the Secretary of the Court or Tribunal and any interested party shall be allowed access to the text thereof"; it is the delimitation of this indeterminate legal concept of "interested party" that constitutes the key to resolving the dispute, since only an adequate delimitation of its scope and whether it corresponds to attribute it to the plaintiff commercial entity will serve to access or not to the claim exercised by it.

Thus, the content found in the videoconference subject to the claim, consisting of a preview of a civil procedure, as a procedural act delivered to the intervening parties for the purpose of completing the procedures determined by procedural law, in guarantee of the right to judicial protection, is not subject to the purported procedural publicity advocated by the respondent. In the same sense, a document addressed to the Court for the celebration of the procedural act, containing personal data of the claimant and their clients, cannot be considered to be covered by that procedural publicity either.

The respondent has processed data, by determining the purposes and means of processing (legal position of data controller) in accordance with the technical and computer procedures offered by the channel, to upload the video, and disseminate the personal data contained therein, as well as to add written documents that it presents alongside the video and link to its own website, identifying the claimant and the parties it represents, natural persons and LEGAL ERASER SL. With this, in addition to the previously described processing, it allows any person connected to the internet and to the respondent's website to view it upon request, initially reaching 975, and later in tests 4.8k views. Below the video, additionally, the document that the procedural representation of the claimant prepared for that act appears, legibly reproducing in part the response of the lawyer from C/ Jorge Juan, 6

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The defendant is questioned about issues to be raised in the preliminary hearing seen in the video, containing the name and surname of the plaintiffs, one of whom is the claimant. It is also mentioned that the Judge resolved on 27/07/2021 the exception of defect in the manner of proposing the claim. The GDPR addresses in its Article 5 the principles that must govern the processing of personal data, a provision that states:

"1. Personal data shall be:

b) collected for specified, explicit, and legitimate purposes, and not further processed in a manner that

is incompatible with those purposes; in accordance with Article 89, paragraph 1, further processing of personal data for archiving purposes in the public interest, scientific and historical research purposes, or statistical purposes shall not be considered incompatible with the initial purposes ('purpose limitation');"

The limitation of the purpose of the use and processing of data in this case was that the data from the videoconference is originally collected for the purpose of effective judicial protection for the parties from the record of the videoconference, which is emphasized in Article 236 quinquies of the LOPJ, which states that:

"1. The resolutions and procedural actions must contain personal data that are adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed, especially to guarantee the right to effective judicial protection, without, in any case, leading to defenselessness."
[...]

"3. The personal data that the parties are aware of through the process must be processed by them in accordance with the general data protection regulations. This obligation also applies to the professionals who represent and assist the parties, as well as to anyone else involved in the procedure."

However, the defendant additionally includes in the videoconference the notes addressed to the Court identifying the claimant, which are transposed onto the defendant's website.

The data from the videoconference was originally collected and processed in accordance with the law by the administration of justice, obtaining from the defendant a copy with a predefined purpose in the jurisdictional regulations.

Recalling that the use that the defendant makes afterwards is that of its complete exposure, through the full dumping of the video, which is limited to titling the identification of the matter and the Court that handles the preliminary hearing, the date, fully attaching the instructive note to the video, and also the link to the instructive note contained in ***DOMAIN.1, as well as the order ***ORDER.1 of XXXX/2021 that again makes the claimant and the parties identifiable by name and surname.

For the reasons stated in the aforementioned documents and the video, the defendant stated that, by virtue of their right to truthful information about relevant facts, with doctrinal legal interest that the claimant seeks to censor, and due to the censorship that this implies.

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business represented by the claimant and which must endure the criticisms, which is advertised on the web promoting their business.

Article 6.4 of the GDPR states:

"4. When the processing for a purpose other than that for which the personal data were collected is not based on the consent of the data subject or on Union or Member State law that constitutes a necessary and proportionate measure in a democratic society to safeguard the objectives set out in Article 23(1), the data controller, in order to determine whether the processing for another purpose is compatible with the purpose for which the personal data were initially collected, shall take into account, among other things:

- a) any connection between the purposes for which the personal data were collected and the purposes of the intended further processing;
- b) the context in which the personal data were collected, in particular regarding the relationship between the data subjects and the data controller;
- c) the nature of the personal data, in particular when special categories of personal data are processed, in accordance with Article 9, or personal data relating to criminal convictions and offenses, in accordance with Article 10;
- d) the possible consequences for the data subjects of the intended further processing;
- e) the existence of appropriate safeguards, which may include encryption or pseudonymization."

In this case, neither the claimant nor probably the intervening parties, judge, prosecutor, and secretary,

had a reasonable expectation of the use of their data exposure through YOUTUBE, where it may remain for an indefinite period. There has been a change of data controller with a intended purpose, for which all obligations imposed by the GDPR must be fulfilled, including the obligation of information as provided in Article 14 of the GDPR, and the exercise of rights.

The original context in which the data is obtained is not related to the context in which it is used, nor was there any relationship between the parties beyond the mere private procedural one without any safeguards for the rights of the affected individuals, particularly the claimant.

The risks in general for the rights and freedoms of the affected individuals due to their personal data appearing on a channel like YOUTUBE, in addition to the absence of free determination of having control over their own data for an indefinite period, may lead, as in this case, to not only the disclosure of identifying data of the individual but also of their professional sphere, which could combine, potentially leading to, among other consequences, a special and qualified intrusion with repercussions on reputation, when in fact the matter could be reported without any reflection of the claimant's personal data.

It is also observed in the present case that the intended purpose of informing about the reason for the dismissal of the claim presented at the hearing, through the complete exposure of the video of the procedural act containing the voice of the claimant, in the development

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professional in their functions, speaking and exposing their personal data through their voice, combined with the documents attached to the video and included on the claimant's page, identify them. These means are neither essential nor necessary to understand said doctrine, to inform about it or the matter. It is based on the premise that the interpretation of the right to information must occur considering the principles of minimization, adequacy, relevance, and consistency in the collection and use of information and data, for a specific and legitimate purpose, taking into account the context in which it occurs, the intended purpose, and the means used. Furthermore, the possible existence of particular interests of the respondent in criticizing what they consider a censoring business is observed, a criticism of the business that need not affect the violation of the data subject's rights, whether or not they are a representative of said entity, when, as evidenced, they could have informed about the doctrine without reproducing such data.

The truth is that without the claimant's voice and without the data that makes them identifiable in the documents attached to the video, the same objective of illustrating the defect in the formulation of the claimant's complaint could have been achieved, with full respect for the claimant's rights, allowing both to coexist without the need for conflict.

The satisfaction of the interest pursued by the responsible party, that the defect in the complaint's approach be known, can be achieved without any need to use their voice, to expose it, which is a piece of personal data, or distorting it to make it unrecognizable and unidentifiable, nor to identify or link them with the documents that appeared doubly, or combined with the video and the order containing their data: name and surname, without any reduction in the dissemination of the intended informative content.

Therefore, the infringement of the aforementioned Article 5.1.b) of the GDPR is deemed proven.

IV. Allegations of the respondent.

Regarding the respondent's allegations about the errors in the identification that appear in the initiation agreement in the links, in the video in the first fact, page 1, and on page 2, although it does not specify either the link or specifically what is erroneous, the link indicated in the initiation agreement could refer to: ***URL.1

It also indicates that the reference to [https://docs.google.com/...](https://docs.google.com/) which hosts the link of the document submitted by the respondent to the Court is erroneous, without indicating where the error is, appearing in the complaint as: ***URL.2

In this case, it is confirmed that the video throughout the initiation agreement is fully identified, as well

as in evidence, which continues to be exposed, and in the complaint those links appear, which are associated with the video and continue to be exposed. This circumstance does not cause material defenselessness nor limits the respondent's rights of defense, who can know the matter and issue that is being clarified, and make allegations against it.

Regarding the respondent's allegation that the claimant is obligated to file a prior complaint with the respondent on the matter, and that a sanctioning procedure cannot be opened directly, it must be taken into account that Article 64 of the LOPDGDD states:

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1. When the procedure exclusively refers to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the agreement of admission to processing was notified to the complainant. After this period, the interested party may consider their complaint accepted.

2. When the procedure aims to determine the possible existence of an infringement of the provisions of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, and of this organic law, it will be initiated by an initiation agreement, adopted on its own initiative or as a result of a complaint, which will be notified to the interested party.

If the procedure is based on a complaint filed with the Spanish Data Protection Agency, prior to this, it will decide on its admission to processing, in accordance with the provisions of Article 65 of this organic law.

Once the complaint is admitted for processing, as well as in cases where the Spanish Data Protection Agency acts on its own initiative, there may be a preliminary investigation phase prior to the initiation agreement, which will be governed by the provisions of Article 67 of this organic law.

The right that any interested party has to file a complaint is provided for in Article 77 of the GDPR. In this specific case, there is no reference indicating that the type of complaint filed relates to the exercise of any right against the respondent, which could be included in the aforementioned Articles 15 to 22 of the GDPR. On the contrary, it is expressly stated that the complainant informs the AEPD: "Actions contrary to current regulations"... "taking advantage of a judicial procedure..." explicitly mentioning by the respondent the reproduction of the video on the YOU TUBE channel and the document of instructive note, as well as on its domain ***DOMINIO.1 and in Google docs. From this, the complainant's intention to file a complaint under Article 64.2 of the LOPDGDD is clearly inferred.

As resolved by the Third Chamber of the Supreme Court in its judgment 1039/2022 of 07/19/2022, appeal 1765/2021 (Osakidetza-Vasco Health Service), although referring to the right to limit processing, the case is extrapolable to the present case, which could coincide with the prior complaint for the exercise of rights. The consequence of this judgment is that in the event that a data controller carries out processing that the interested party considers excessive, a complaint may be filed with the competent Data Protection Agency and, if applicable, the initiation by it of a sanctioning file for the infringement of the data minimization principle of Article 5.1.c) of the GDPR, without it being required as a condition for admissibility that the interested party exercises the right to limit processing provided for in Article 18.1.d) of the aforementioned Regulation.

It appears in the SECOND FACT of the "presentation of the cassational debate":

"In the second, third, and especially fourth grounds of its appeal, Osakidetza-Vasco Health Service alleges that a potential consideration of the breach of the principle of..."

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Data minimization by the data controller or processor should necessarily involve a prior exercise of the right to restriction of processing by the data subject.

The appellant adds that before proceeding with the initiation of an infringement procedure by the Basque Data Protection Agency and before the imposition of a warning sanction for very serious infringement on Osakidetza-Basque Health Service for non-compliance with the data minimization principle of Article 5.1(c) of the GDPR, given the circumstance that there was information (the sex data) lawfully collected and already existing in the medical history, a procedure should have been followed for the exercise of the right to restriction of processing between the data subject and Osakidetza-Basque Health Service. According to the appellant's criterion, this exercise of the right to restriction of processing should have begun with a prior - in this case non-existent - request from the individual directed to the data controller or processor, expressing their disagreement with the specific processing carried out, along with the reasons they deemed appropriate for that effect.

In summary, the appellant considers that, through its actions, the Data Protection Authority circumvented the required procedure for exercising the right, in which there would have been the possibility to verify whether there was any reason on the part of the data controller that would advise that their opinion should prevail over that of the data subject, as well as the possibility of a potential solution subject to the expressly contemplated procedure for that purpose, a reason that the party qualifies as fundamental to support the argumentation and presentation of the cassation appeal."

The fourth foundation is reproduced, points 5 to 8:

"In any case, the cassation appeal is based on the appellant's demand for a sort of requirement for admissibility or prosecutability, which conditions the initiation by the Basque Data Protection Agency of the procedure for exercising the sanctioning power on the exercise by the data subject of the right to restriction of processing referred to in Article 18.1(d) of the GDPR that we have just examined.

The Chamber does not share the arguments of the appellant, as neither the GDPR, nor the LOPDP, nor the Regulation for the development of Organic Law 15/1999, of December 13, on the protection of personal data, approved by Royal Decree 1720/2007, of December 21, contain any provision that establishes the requirement for the exercise of the right to restriction of processing under Article 18.1(d) of the GDPR to initiate a sanctioning procedure for the very serious infringement described in Article 72.1(a) of the LOPDP, for processing personal data in violation of the principles and guarantees established in Article 5 of the GDPR, nor does the appellant cite any provision that supports the requirement for admissibility invoked in their appeal.

6.- Article 63 of the LOPDP distinguishes between two types of procedures for possible violations of data protection regulations: those in which an affected party claims that their request for the exercise of the rights recognized in Articles 15 to 22 of the GDPR has not been attended to, and those others investigating the existence of a possible infringement of the provisions of the GDPR and the LOPDP itself.

In this case, it is clear that we are not facing a procedure that refers to the lack of attention to a request for the rights established by Articles 15 to 22 of the GDPR,

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since the complainant has neither exercised the right to restriction of processing under Article 18.1.d) of the GDPR, to which the appellant refers in their submission, nor the right to object under Article 21.1 of the GDPR, which is linked to the former, nor any of the other rights provided for in Articles 18 to 22 of the GDPR, as is clearly evident from the complaint itself contained in the administrative file (pages 1 and 2 of the administrative file), in which there is no mention of the lack of attention to a request to exercise any of the rights recognized in Articles 18 to 22 of the GDPR.

The reading of the complaint also reveals that what the complainant seeks from the Basque Data Protection Agency is the investigation of a possible infringement of the provisions of the GDPR and the LOPDP. Indeed, the complainant states in their complaint that "the reason for my claim/complaint is

the content of the report made in the emergency service, as it reveals several particularly protected personal data that are totally irrelevant from a clinical/medical point of view regarding the reason for visiting the emergency room and the treatment received (X-ray and bandaging of a toe)."

The complaint further adds: "I consider that the act of revealing and exposing those particularly protected personal data (the fact of being a transgender woman) and the terminology used, violates my right to the protection of my personal data, my right to privacy, [...] I also demand that this violation of my rights be investigated, responsibilities be determined [...] and the corresponding sanctions be applied."

7.- Article 64.2 of the LOPD provides that when the procedure aims to determine the possible existence of an infringement of the provisions of the GDPR and the LOPD, as is the case now, "it shall be initiated by an initiation agreement adopted on its own initiative or as a result of a complaint."

Therefore, this provision does not require, nor does any other, that the initiation of the sanctioning procedure in the field of data protection be conditioned on the prior requirement of exercising the right to restriction of processing under Article 18.1.d) of the GDPR, as the appellant asserts, nor on the exercise of any other of the rights established by the GDPR.

8.- The exercise of the rights established in Articles 15 to 22 of the GDPR (rights of access, rectification, erasure, restriction of processing, data portability, and objection) is a distinct and independent avenue from the filing of complaints before the Spanish Data Protection Agency or the Basque Data Protection Agency, in accordance with the provisions of Articles 64.2 and 65 of the LOPD and Article 9.1 of Law 2/2004, of February 25, on Public Ownership Data Files and the Creation of the Basque Data Protection Agency.

Therefore, the interested party may exercise the rights recognized in Articles 15 to 22 of the GDPR and simultaneously or alternatively file a complaint or report with the competent Data Protection Authority for actions they consider contrary to data protection regulations, but there is no legal requirement for the complaint or report to necessarily be preceded by the exercise of restriction of processing, as the appellant intends, or any other of the rights regulated by Articles 15 to 22 of the GDPR."

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Therefore, this allegation of the necessity of prior claim against the respondent to initiate proceedings against the respondent, or that the claimant could or should have approached YOU TUBE, cannot be upheld.

Regarding the allegation that the judgment of the National Court 1702/2012, corresponding to ECLI: ES:AN:2012:1702, from the contentious-administrative chamber, section 1, dated 11/04/2012, case number 410/2010, has not been taken into account for this case, it should be noted that the circumstances are not the same, and thus the consequences cannot be the same.

The specific circumstances under which the processing of data and images in this procedure occurs are different from the judgment provided by the respondent. In this case, the origin of the video comes from the Court due to a private dispute, without a reasonable expectation of having their data exposed on the YOU TUBE channel, with the claimant being in the course of exercising their profession, and the purpose, moreover, in this case is to underline the defective nature of the claim, not the behavior of the person as in the case of the judgment. Furthermore, the judgment dealt with public officials linked to important positions at the University, acting in judicial processes as experts. The purpose being addressed here is not to report abnormal facts, but rather a private matter by a professional in which they can undoubtedly be informed without exposing their data and identifying the claimant, nor is the animosity towards their business justification for exposing their data and identifying them also in a combined manner, not through one avenue, but through several: video and documents.

In this specific case, there is also, in the performance of professional defense functions in a private matter, an absence of public relevance of the claimant, all elements that, when combined, imply that to disclose the information regarding the causes of the filing of a defective claim, it is not necessary to

disclose their personal data of voice, image, combined with support from additional data exposed not only on the YOU TUBE video channel but also in links to their own page. The use of the video in this sense and for this purpose is what constitutes the agreed attribution, clearly differentiated from the alleged judgment.

Regarding the allegation in the proposal that the AEPD specifies and documents how many administrative resolutions have served to require GOOGLE and YOU TUBE to remove content, considering that the claimant boasts of having removed hundreds of thousands of links, this has been formulated after the conclusion of the evidentiary period and, in addition to having no relation to the infringement attributed to the respondent, it is unknown what relation it could have with this claim.

V Qualification and typification of the infringement.

The infringement for which the respondent is held responsible, article 5.1.b) of the GDPR, is provided for in article 83.5 of the GDPR, which states: "Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 euros or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) The basic principles for processing, including the conditions for consent under articles 5, 6, 7, and 9."

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Referred to in the LOPDGDD, Article 72.1.a): "1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall prescribe after three years: the infringements that involve a substantial violation of the articles mentioned therein and, in particular, the following:

The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

VI Determination of the fine.

In determining the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive."

"Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damage and harm suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the affected parties;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, in that case, to what extent;

- i) when the measures indicated in Article 58, paragraph 2, have previously been ordered against the controller or processor in relation to the same matter, the compliance with such measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

Regarding paragraph k) of Article 83.2 of the GDPR, the LOPDGDD, Article 76, “Sanctions and corrective measures,” provides:

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“2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The ongoing nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

In light of the transcribed provisions, in order to determine the amount of the fine that should be imposed on the respondent as the alleged responsible party for an infringement classified under Article 83.5.a) of the GDPR, the following circumstances are noted:

- The infringement persists over time; despite being indicated in the initiation agreement, there is no record that the data processing has ceased, and it is unknown whether access to the claimant's data is ultimately prevented through the video and documents, which would operate as an aggravating circumstance under Article 83.2.a) of the GDPR.
- The processing of personal data was carried out with at least a serious lack of diligence, and it cannot be said that it was exposed involuntarily or undesirably, considering that the confrontation between the parties over data deletion or similar issues should not diminish the powers held by the data protection rights holder (Article 83.2.b, GDPR), which would operate as an aggravating factor.
- 83.2.e), “any previous infringement committed by the controller or processor”; specifically, case PS/00485/2021 by the same respondent, as recorded in the information systems of the AEPD, which should operate as an aggravating circumstance.

It should be noted that the respondent has not demonstrated the compliance measures referred to in the proposal, and there are no signs of mitigating the damages suffered by the affected party, nor did it seem to consider resolving the appearance of personal data in the video and its annexes by the claimant, knowing that such conduct could infringe the provisions of the GDPR.

Furthermore, not only has the respondent failed to demonstrate the above, but under the supposed transparency of the matter, it has exposed the initiation agreement and the proposal, again highlighting the facts that identify the claimant and the address where the video and documents are located, which only serves to aggravate the infringement, evidencing a lack of cooperation in remedying the infringement and mitigating the adverse effects.

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The GDPR, Article 83.1, warns that in imposing administrative fines for violations of the GDPR, the Supervisory Authority shall ensure that they are in each case "effective, proportionate, and dissuasive." These criteria that govern the determination of the amount of the fine require consideration of all circumstances. With their dissuasive effect, administrative fines contribute to strengthening the protection of individuals regarding the processing of personal data and thus constitute a key element in ensuring respect for the rights of such individuals, in accordance with the purpose of the aforementioned Regulation to ensure a high level of protection for those individuals concerning the processing of personal data, which leads to the determination that the fine to be imposed is 10,000 euros.

In the allegations against the proposal for the fine of 10,000 euros for the violation of Article 5.1.b) of the GDPR by the respondent, they stated that the amount is disproportionate, considering their particular economic situation - already documented - without providing new references. They refer to what was submitted in the file PS/00485/2021, namely:

a) Certificate (...).

b) A resolution from the Commission for free legal assistance of ***LOCALITY.1, from the Department of XXXXXXXX of the XXXXXXXXXXXXX, convened in session on XX/XX/2021, which agrees (...).

For its part, the proportionality in the final amount of the fine is claimed by the respondent based solely on their resources. For this, it cannot be assessed, as it must be taken into account that the economic data provided by the respondent only reaches the year XX, and the recognition of free legal assistance was also a case from that XXXX, when the violation being sanctioned refers to the initiation agreement from the year 2023, resolved in 2024, for conduct that has been ongoing since the year 2021. It is thus considered that the economic data referenced by the respondent is not updated, not allowing for a specified and justified reduction at the time of the resolution of the infringement commission.

VII Corrective Measures

Article 83.2 of the GDPR allows for the imposition, together with the fine, of some of the corrective measures contemplated in Article 58.2 of the GDPR. The provision warns that, depending on the circumstances of each case, "administrative fines shall be imposed" "as an additional or substitute measure for those contemplated in Article 58, paragraph 2, letters a) to h) and j)."

Article 58.2 of the GDPR lists the corrective powers available to the supervisory authority, among them, in addition to the administrative fine (paragraph i), the power to "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period," (paragraph d).

In the present case, without prejudice to the modulation or adaptation of the right to information that has been detailed, it would be appropriate to impose on the respondent, in addition to the fine, the following corrective measures:

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- Removal or distortion of the voice of the complainant and of the footnotes in the video that identify them, avoiding, to the extent that the state of technology allows, the re-uploading or reloading of exact copies or replicas by the same or other users.
- Removal and anonymization of the links that host the aforementioned evidence note on the website of the respondent that allow the identification of the complainant by their name and surname and in docs.google. The same applies to the order ***ORDER.1.
- Removal or modification of the documents created and linked by the respondent that enable access to the content of the initiation agreement and the resolution proposal of this procedure, in such a way that it prevents access and knowledge of the data that identify the complainant or make them identifiable by third parties.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in

the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its article 83.5 and 83.6, which may motivate such conduct to initiate further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection

RESOLVES

FIRST: TO IMPOSE on Mr. B.B.B., with NIF ***NIF.1, for an infringement of article 5.1.b) of the GDPR, classified in article 83.5 a) of the GDPR, and for prescription purposes, qualified as very serious in article 72.1 a) of the LOPDGDD, a fine of 10,000 euros.

SECOND: TO ORDER Mr. B.B.B., with NIF ***NIF.1, that pursuant to article 58.2.d) of the GDPR, within fifteen days, prove that he has complied with the provisions in the legal basis VII.

After the granted time, he must inform this AEPD.

It is warned that failure to comply with the requirement may lead to the commission of an infringement of article 83.6 of the GDPR.

THIRD: TO NOTIFY this resolution to Mr. B.B.B.

FOURTH: This resolution will be executable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must fulfill the imposed sanction once this resolution becomes executable, in accordance with the provisions of article 98.1.b) of Law 39/2015, of October 1,

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of the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account no. IBAN: ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receiving the notification and once it is executable, if the date of executability falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route in accordance with article 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a reconsideration appeal before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of article 90.3 a) of the LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for

Data Protection, presenting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded. 938-21112023

Mar España Martí

Director of the Spanish Agency for Data Protection

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